The Politic

Changing the Consensus

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Hispanic American History Month Piece

BY **NICHOLAS PEREZ**

I never thought I'd get "weeded out," but I did.

Going into a panel discussion titled "STEM in Industry" last January, my second-semester schedule included Biology 101/102, Organic Chemistry for First-Year Students II, Laboratory for Organic Chemistry II, and Introduc-

ces of Latinx Faculty At Yale

tion to Psychology. After the panel, I wiped my Course Search clean, devoting myself instead to the policy side of Environmental Studies, which I knew better but which felt less "job secure."

The panelists had no shortage of accomplishments. They floated around impressive pharmaceutical company names and urged us to "connect with" them on LinkedIn. I felt miles behind my peers in the STEM marathon as panelists referenced research they had performed as early as 11th grade. One even illustrated an example by referencing a company owned by their parents. These subtle comments provoked no unease on the faces of the audience members I could see on the standard display; no one else seemed to find this foreign.

I came into Yale as a pre-med student, planning to major in either Neuroscience or Molecular, Cellular, and Development Biology. While I felt

At predominantly white institutions, even faculty and staff of color must navigate challenges related to their identity and the expectations of academia, while being expected to mentor students of similar cultural heritage.

sure about my direction, actually getting there was an entirely different story. I couldn't stop shaking when I first walked into the Sterling Chemistry Laboratory.

The insecurity never went away.

A SCROLL PAST the faces of winners for the STEM-related Nobel Prizes is a reminder of the dominance of white men in the hard sciences. For the Nobel Prizes in Physics, Chemistry, and Medicine or Physiology, Latinx scientists make up 0%, 0.5%, and 2% of recipients, respectively. Comparably, as of 2020, only 3% of the science awardees were women, and none of the 617 science laureates have been Black.

This dearth of Nobel Prize-winning scientists of color provides little inspiration to traditionally underrepresented students. However, Yale, with its abundance of resources, can and often does provide role models and mentors in many other places, especially in the professors who guide us in our academic careers. These people reaffirm students of colors' place within predominantly white institutions.

Yale fares slightly better in statistics indicating Latinx faculty representation than those of the Nobel Prize, but it still leaves much to be desired. In 2020, across all its schools, 4.5% of Yale's ladder faculty identified as Hispanic or Latinx. This percentage dips to zero in the Architecture, Art, Drama, and Music schools. Within the Faculty of Arts and Sciences (FAS) that encompasses Yale College's majors, the percentage creeps back up to 4.7%.

The role of mentors is a frequent topic of study for researchers interested in Latinx representation in higher education. Supportive mentors help students of color to develop a sense of belonging and reaffirm their academic ability. They share culture and serve as advocates on behalf of minority students, providing valuable information on matters such as financial aid, campus opportunities, and research experiences. But there are many obstacles institutions might face in trying to provide greater mentorship opportunities. At predominantly white institutions, even faculty and staff of color must navigate challenges related to their identity and the expectations of academia, while being expected to mentor students of similar cultural heritage. Faculty members of color might have different access to mentorship, support, and information about tenureship compared to white peers, which exacerbates feelings of isolation and impostor syndrome. The issues of representation and inclusion run beyond undergraduate and graduate students, and well beyond STEM disciplines.

OVER TWO WEEKS, I interviewed several Latinx faculty and staff at Yale about their experiences. I was curious to find out what obstacles they had encountered and overcome, and sought to learn how their identity influenced their careers, if at all.

Marietta Vázquez is a professor of general pediatrics and infectious diseases at the Yale School of Medicine. She also works as the Vice Chair of Diversity, Equity, and Inclusion in the Department of Pediatrics and founded the Yale Children's Hispanic Clinic. Vázquez earned her Bachelor's degree at Yale College before returning to Puerto Rico, where she was born and raised, for medical school. She graduated from the University of Puerto Rico and returned to Yale for her residency program.

Accomplished and competitive, Vázquez recalled being nothing but excited to start her residency program at Yale. As we spoke over Zoom, I noticed how quickly her enthusiasm shifted to a much more sober tone as she discussed a racist encounter that never

faded from her memory.

During one of Vázquez's first rotations, she met with a child accompanied by two parents. "I was a first year pediatric resident, and I was just so excited," she recalled. However, as Vázquez proceeded through a list of questions for the family, the father stopped her. "He asked me where I was from, because I had an accent," Vázquez explained. "I told him, and he asked me where I went to medical school. I thought 'this is odd,' because I've never been asked that before in a clinical encounter. But I very proudly told him that I was from the University of Puerto Rico." The father requested to see another doctor. "That was probably the first time that I realized how somebody could make such an incredible judgement based on my identities," Vázquez said.

Vázquez's anecdote reveals that racist incidents of stereotyping and condescension persist for members of marginalized communities at the highest levels of professional experience. Her experience is no exception, and processing microaggressions was a recurring theme through my conversations.

The first time I met Teresa Lara-Jaime, she advised me to avoid cluttering my lab workbench by cleaning vials as I worked. Soon after, we started speaking in Spanish and continued to do so until the end of the semester. Lara-Jaime is the manager of the undergraduate chemistry laboratories at Yale. She received her Bachelor's degree from the Universidad Autónoma del Estado de México, a public university located in Toluca, Mexico. She worked in Mexico for 11 years for several pharmaceutical companies before moving to the United States for better job opportunities. Here, Lara-Jaime worked with Positron Emission Tomography – an imaging technique used to detect early signs of cancer, brain disorders, and other disease – in the Yale School of Medicine before finding her "dream job" as manager of the undergraduate chemical laboratories, where she connects with passionate students in STEM and works hard to make each lab session rewarding for students.

While incidents of microaggressions towards Latinx professionals from ignorant members of more dominant cultural groups may come as no surprise, Lara-Jaime reminded me that fellow members of the Latinx community also question the success and qualifications of Latinx individuals in fields in which they are typically underrepresented. One student in Lara-Jaime's advanced organic chemistry lab reacted with disbelief when he first met her in the lab. After asking if she was Latinx and spoke Spanish, he said, "'Oh, my gosh, how did you get this job?'" Lara-Jaime said. "He was surprised that a Mexican can have that kind of job." Lara-Jaime did not know how to answer. "I understand that some people, not only Mexicans but also some Latinos, their self confidence is low," she said. "We have to be a model for all those students… because otherwise all the time they'll think that other people are smarter, which is not true."

Although I never expressed this to her last year, I understood what her student might have meant when they asked that question. To my understanding, the question was not like that of Vázquez's patient's father, who made Dr. Vázquez feel undeserving and unqualified. The tone of admiration with which Lara-Jaime delivered, "Oh my gosh, how did you get this job?" conveyed to me that her student's question was one built on overwhelming awe and perhaps the internalization of lowered expectations for Latinx professionals. Like me, the student asking the question might have sought to understand Lara-Jaime's success and the mettle that allowed her to break into a historically white-dominanted, esoteric field.

There is no shortage of explanations as to why Latinx professionals are often met with questions. The disbelief that Latinx academics encounter might not only stem from a lack of visible representation of Latinx faculty, but also from an understanding of excellent scholarship that excludes work produced in Latin America.

Moira Fradinger, an Associate Professor of Comparative Literature in Yale College who researches Latin American film and literature, has lived in Argentina, Ecuador, Peru, and Venezuela. Her academic focus lies in Latin American film and literature, and she is teaching "Radical Cinemas of Latin America" this fall.

In our conversation, Fradinger spoke about expanding the boundaries for "the production of knowledge." In America — and at Yale, particularly manifested in the Directed Studies program — there exists a widely-recognized "Western canon" of literature. Fradinger insists that the production of excellent knowledge is not unique to the Global North, despite preconceived notions. Drawing from the Brazilian novelist Oswald de Andrade's 1928 "The Cannibalist Manifesto," Fradinger explained how Latin American authors have long since challenged colonial discourse by making colonial ideas their own. She discussed the "digestion" of the Edgar Allan Poe and Sherlock Holmes tradition by Brazilian authors, noting that they absorbed these ideas, removed what clashed with their culture and traditions, and preserved what nourished styles of writing therein.

Despite this Latin American reckoning and demarcation, Fradinger notes that for many, the highest intellectual achievements remain within the Global North. She shared that, despite the work and intentions of her course, at the end of the seminar, one student approached her and said, "Thank you very much for introducing me to Jorge Luis Borges. He's not Milton, but he's good."

Such instances informed Fradinger's choice to specialize in Latin America; she found that few students had engaged with Latin American writers writing about Latin America. At Yale, the research and interests pursued by faculty members in turn affect student interest and available opportunities available to them

"Raw materials are not what

makes the Global South worth knowing", Fradinger reminds us. "The production of knowledge is not a property of the North. The production of knowledge is universal. It's also a property of the South, the South has its own knowledge… Right now there's a huge indigenous movement that defends the discourse of el buen vivir, the good living, that is coming from the area of Ecuador and Peru… that indigenous movement has a lot to teach us, a lot of knowledge to be transmitted."

MANY INSTITUTIONAL obstacles hinder the advancement of Latinx academics, including shortage of funding and a lack of established Latinx faculty to provide support and encouragement. Systemic factors such as media coverage and enduring conceptions of "canons" also stifle Latinx intellectual excellence at the highest levels. However, the question of chipping away at these injustices remains unresolved.

Yale has undertaken several strong initiatives to promote diversity in its faculty and staff. In 2015, the Office of the Provost implemented a $50 million initiative that supports the "appointments that enrich the excellence and diversity of Yale's ladder faculty." Departments such as Molecular Biophysics and Biochemistry have started to use a hiring process that removes researchers' names and the journals in which they published, in one instance bringing up the percentage of women candidates from 33% to 45% after the results of the first-round.

There are many factors contributing to the slow rate at which faculty composition approaches the same distribution as the student body. One reason might be the "pipeline problem," which attributes a shortage of Latinx professors to their concerns about financial security, the intellectual diversity of institutions, and support in navigating the tenureship process. However, the nature of faculty retention also plays a role in delaying representational progress. Whereas each year a quarter of the Yale undergraduate population is replaced, only 4% of faculty members are replaced each year. Furthermore, because faculty are never forced to retire, older professors are usually white men.

I came into these interviews with this pessimism, and I expected to hear the faculty complain of a lack of representation and institutional support. I was met with unwavering optimism. Clearly, the people I interviewed are much stronger than me. I can only hope to one day approach their ability to persevere and to smile through struggles.

Dr. Vázquez refuses to compromise her identity as a Latina. She demonstrates this commitment in varied ways. Vázquez noted how when she first came to Yale for her residency, she tried to "talk like the people at Yale spoke, and to be interested in what they were interested in… to talk the science and the papers and the grants."

Today, Vázquez has tailored her work to the community she loves. When asked about her current responsibilities, she proudly said, "I'm an activist!"

Vázquez founded the Yale Children's Hispanic Clinic in 2013 and has played an integral role in its development ever since. "[It's] the thing that I'm the most proud of," Vázquez said. "Through that clinic, I learned so much about the community in a different way, learned about what it was like for them." Currently, over 95% of Vázquez's patients are undocumented immigrants.

Her Latina pride manifests itself in her day-to-day approach as well. "I'm a Latina who conducts research, writes grants, but I'm that one who speaks Spanish, who is loud, who cares about how I dress and how my hair looks and how I put on makeup," Vázquez explained. "I'm not gonna hide that. And I'm not going to hide the fact that I like to play music in clinic, and we bring food to clinic because that's important to us. It's important to me."

Professor Fradinger is continuing her work in highlighting underrepresented voices and intellectual histories. Her latest project, with the working title "Antigonas: A Latin American Tradition," actively works to redefine the "canon" by looking at versions of Antigone from Argentina, Haiti, Brasil, Perú, Mexico, Uruguay, Columbia, and Chile, and comparing them to one another as opposed to the more common comparisons to ancient or modern European versions.

Teresa Lara-Jaime, in addition to mentoring the organic chemists of tomorrow, has started taking classes focusing on managerial processes. She noted how she strives for perfection, even if it means putting in more work than the next person. "I'm struggling a lot with my accent, but I am trying to surpass that challenge with work… I don't have to say many words when my work represents who I am."

As she lamented the injustice Latinx students and faculty feel in having to work twice as hard to prove that they belong, I felt my usual pessimism sink back in. But, like Vázquez and Fradinger, Lara-Jaime would always end with a rally of optimism. These faculty members at once validated my feelings of insecurity as something not unique to me; they made clear that these struggles cannot be undone quickly, if ever.

"It's a lot of challenges… but in the end, I'm very proud to be Mexican. I always joke that Mexican is like 'Mex - I - Can,' and I like that. I'm very proud to be a Latina."

The simple act of hearing these faculty and staff members' stories and celebrating their successes revitalized me and inspired me. It reminded me of the power of a community that transcends generations, countries, and topics of study.

I won't get weeded out again.

Activism, Half-Baked

Profit and Progressive Values in Corporate America

BY: **MICHAELA WANG**



ACROSS FROM THE FROZEN TEXAS TOASTS and next to the 100-calorie Halo Tops sits a fortress of blue pints. You might know the brand for its eccentric packaging ringed by the Vermont hills or those bites of cookie dough tucked under rich folds of ice cream. But most distinct are its cleverly-named, eccentric flavors often tied to cable television hosts or nationwide social justice movements: Save Our Swirled, a raspberry-fudge swirl meant to raise awareness about climate change, Justice ReMix'd, a cinnamon and chocolate combo that donated a percentage of profits to criminal justice reform organizations, and I Dough, I Dough, a cookie-dough ice cream that celebrated the Supreme Court's decision to legalize same-sex marriage. Ben and Jerry's makes strolling down the ice cream aisle feel like a march in protest against everything systemically corrupt about the world. And it is not alone.

For so long, the unofficial rulebook of corporate America segregated business from politics. Taking stances meant potentially alienating shareholders, employees, and customers. According to Dr. Uptal Dholakia, a professor of marketing at Rice University, it could also distract managers from what business does best — business. But in order to redefine these capitalist-driven goals of maximizing shareholder profit, several companies have publicized their stances on social justice issues central to their values.

In the past year, protests over racial injustice and threats to U.S. democracy have sparked a wave of activism across corporate America. Company leaders have hosted community conversations, signed letters, released statements, promised donations, and shared hashtags picked up from their fifteen-year-old daughters. But with many of these objectives left unmet, the value of corporate activism runs into pressing questions: What really defines an "activist" company? How can companies engage authentically and effectively in activism, without exploiting social-justice issues as marketing tactics? And how can we, as consumers, identify and endorse the companies who are driving social change?

"We all shared a strong love for nature and the outdoors," said Vincent Stanley, Patagonia's Director of Philosophy and previous Head of Marketing and Sales, in an interview with *The Politic*. He joined Patagonia in 1973, the year an outdoorsy clan of climbers and surfers founded the company. "If you spend time outside and treasure that experience, you want to protect those places. That's how our activism was born."

The company is well-known for producing sustainable outdoorswear, taking unapologetic stances on climate change and against its skeptics, publishing books on the environment, and encouraging the purchase of its second-hand clothing.

"To me, Patagonia upholds their corporate values," said Anna Albright, an Environmental Studies major who leads the Environmental Social Governance (ESG) team for the Dwight Hall Socially Responsible Investment Fund. "If you walk by a Patagonia store in New Haven, you'll see a lot of their messaging is about climate change. They have numerous programs — such as repairing worn clothes for free — that promote sustainability."

Stanley spearheaded many of these initiatives, one of which includes the Footprint Chronicles.

"In the mid-80s, we really didn't know how we were impacting the environment," he said. "Once we started to really investigate the environmental

Company leaders have hosted community conversations, signed letters, released statements, promised donations, and shared hashtags pic their fifteen-year-ol



To redefine these capitalist-driven goals of maximizing shareholder profit, several companies have publicized their stances on social justice issues central to their values.

harm of our products, we realized that the cotton we used required an intense use of chemicals and other substances harmful to the environment."

The Footprint Chronicles reveals the greenhouse gases emitted, resources required, and labor employed in the production of a certain product.

"The idea was to talk about what we are proud of about that product, what we were not so proud of, including the environmental and social problems," explained Stanley.

Work like this is not as simple as signing a public letter or posting an empty black square on Instagram in solidarity with Black Lives Matter. "People really liked [The Footprint Chronicles], but it was challenging to keep up with the information, especially as we were changing factories."

In addition, initiatives like "The Footprint Chronicles" reveal to customers how the business itself can fall short of sustainable goals, going against the traditional business rulebook that encourages entrepreneurs to always pitch the best version of their products.

In 2011, Stanley oversaw an advertising campaign in *The New York Times* on Black Friday. Instead of flaunting the fleece's most marketable features, the full-page ad said: "DON'T BUY THIS JACKET." Below the jacket's image was a list of the 36 gallons of water required to produce the jacket (enough to fill the daily needs of 45 people), the 20 pounds of carbon dioxide emitted (24 times the weight of the jacket), and the amount of waste produced (two-thirds of its weight in waste). To Stanley, this advertisement felt like coming clean: "We don't know how to make anything that gives back to the planet as much as we take from it. As a producer, we should be careful about what we make. As consumers, we shouldn't be buying so much stuff."

"I think they are really shooting themselves in the foot here," said Albright. "They get so much revenue through these vests. To say 'we are not doing that anymore because we don't like what those businesses stand for,' is so insanely stupid from a business perspective. They are really trying to embody their values."

However, Patagonia still fails to embody their values in many ways. Take a look at their entirely white executive team. Or even consider their customer demographics, made up primarily of people who can afford the high-priced products. According to Helixa Marketing, the biggest segment of Patagonia's fans includes older married men aged 55-69, who are 20% more likely than the average U.S. adult to make an income over $100K. Can Patagonia still be regarded as an "activist" company, preaching sustainability while only being worn by top income earners?

Just like with Patagonia, social responsibility is baked into the ethos of Ben and Jerry's. But a similar hypocrisy is at play.

It was the summer of 1978: The Vietnam War was over, and Egypt and Israel had just signed a peace treaty at Camp David. The hour was ripe for two tie-dye-clad, flip-flop-wearing hippies — Ben Cohen and Jerry Greenfield — to open an ice cream shop in a remodeled gas station in Burlington, Vermont. As the business bloomed from its initial $12,000 investment, the owners began packing up pints and distributing them across mom-and-pop stores in Vermont.

"Ben & Jerry's mission was developed over the first 10 years of the business, supported by the cofounders," said Sean Greenwood, the company's

cked up from
d daughters.

Corporate activism is an oxymoron.

Director of PR & Communications, in an interview with *The Politic*. He referred to the company's three-pronged value system stated explicitly on their public website: human rights and dignity; social and economic justice; and environmental protection, restoration, and regeneration.

"As they added more workers to the organization, those individuals became empowered to bring the mission to life. It is still a guiding force for the organization today," he said.

Greenwood's usage of the word "still" alludes to an internal seismic shift in 2000, when Unilever, the huge grocery store conglomerate that owns almost every homecare brand, bought Ben and Jerry's. Though Cohen and Greenfield still involve themselves in promoting social-justice campaigns, this buyout complicates the company's ability to preserve its values.

"It's important to remember that Ben and Jerry's is owned by Unilever, and though the company is a certified B Corp, their marketing tactics are still capitalist and extremely performative," Albright said. "They name an ice cream and make a Twitter statement, but they are just trying to make themselves interesting to liberal young people."

On July 19, 2021, Ben and Jerry's announced that it would stop selling their products in Israeli-occupied territories. Some major shareholders responded harshly, with New Jersey's Division of Investment committing to divesting $182 million from Unilever. The Unilever stock price fell four points within the three days of the Ben and Jerry's announcement.

"The business does not get involved in controversy for controversy's sake. It just tries to follow its mission and values and act on those accordingly," Greenwood said. "To us it's more important that we practice our business values correctly than trying to make more money."

"They are visibly hemorrhaging cash and they are not backing down," said Elishevlyne Eliason '25, a Political Science and English double major and social justice advocate. "At the end of the day, they are getting the point out there. Even if it is controversial, it's still out there."

So does the authenticity of a company's activism really matter? Maybe the reasoning is irrelevant: Regardless of its glib pint names and performative marketing tactics, Ben and Jerry's is bringing attention to neglected issues.

Not every company is like Patagonia or Ben and Jerry's. Most are founded to make profit, not to promote social justice. However, many customers — particularly younger ones — believe that all companies hold a responsibility to speak out against injustice, which could have broader implications on their workforce, customer base, and society at large.

But when pressured to broadcast political statements, companies can make false promises and leverage social justice movements to gain popularity. In the past decade, the term "greenwashing" has been used to describe apparel companies who boast their products are "sustainable," "green," or "environmentally conscious" when their products are, in fact, not.

H&M, a fast-fashion pioneer that produces three billion articles of clothing per year, sits on top of $4.1 billion dollars worth of unsold clothes, some of which is burned for fuel. H&M has ostensibly addressed their environmental impact, creating a 'Conscious' sustainable fashion collection that uses eco-friendly materials like organic cotton and recycled polyester. But in reality, the most direct way for H&M's leadership to reduce the company's environmental footprint would be to produce fewer clothes. "Large companies by and large can't be 100 percent sustainable. And you can't expect everyone to have or have access to clothing that is sustainable," said Tara Bhat '25, a climate activist. "I think the solution is for companies to be more transparent, especially companies who claim that they are doing something sustainable. Say and commit, or don't claim it all."

Scott Reed, who oversaw political strategy for the Chamber of Commerce, advises business leaders to remain political while building their influence in the company's surrounding community. "My advice is: Play the long game," Reed told *The Wall Street Journal*. "Don't react to the daily news of wokeism, and work with your friends and grow your partnerships in the community back at home. I'd double down back at home because that's where you have real influence, with your employee base and with your impact on the community."

Corporate activism is an oxymoron. At the end of the day, businesses have to make a profit to keep running, sometimes exploiting politics to attract customers. Even Patagonia and Ben and Jerry's, two pioneers of corporate activism, can be caught in hypocrisy. But that doesn't mean corporate America should avoid activism altogether — especially at the local level, companies can make a real impact in their communities, where they have direct influence and can be held more accountable.

CHANGING THE CONSENSUS

Australian Students Confront Culture of Sexual Assault

BY **MARGOT LEE**

This article contains references to sexual violence, which some readers may find triggering.

"I SAID NO, REPEATEDLY."

"I woke up in pain."

"I was not the only girl he did this to."

"He got away with it."

"It was not okay that we went to school with sex offenders and nothing came about from it."

Over the last eight months, high school students across Australia have voiced their experiences of sexual assault in an online campaign called Teach Us Consent. Thousands of testimonies, spanning generations, are exposing the rampant culture of sexual assault in high schools. For many, the campaign has illuminated the Australian education system's failures.

Victoria, who wished to be identified by only her first name, attended a small Christian all-girls school in Melbourne, where a teacher once told the class not to resist rape because it would just hurt more. "Things that we were told probably primed us for being more accepting of a rape culture later in life," she said.

A 2019 graduate of the Scots College, a private all-boys school in Sydney, told me, "It was not okay that we went to school with sex offenders and nothing came about from it. No punishments or anything. I read the testimonies and I just knew this is what was going on every weekend."

"We all knew in the back of our minds that it was happening," said Emilia Doohan, a graduate of a private all-girls school in Sydney, in an interview with *The Politic*. "It wasn't shocking at all."

AS OF EARLY OCTOBER 2021, over 6,700 accounts of sexual assault that occurred in Australian high schools have been published on the Teach Us Consent website.

The project began in February 2021 with the testimony of Chanel Contos, who was a student at Kambala, a private all-girls high school in Sydney, when she was first sexually assaulted. At the age of 22, Contos realized how common stories of sexual assault and rape were among her peers. She posted an Instagram poll with a stark question: "Have you or has anyone close to you ever been sexually assaulted by someone who went to an all-boys school in Sydney?"

Within 24 hours, 200 respondents had said "yes."

Contos collated the responses into an online petition demanding mandatory sex and consent education in Australian high schools. By March, the website had 30,000 signatures and 5,000 testimonies. While the campaign began with students in Sydney private schools, it soon touched on all types of schools across the country. The testimonies inundated headlines and intensified national debate on the prevailing rape culture throughout Australian high schools.

Student assaults had received local media attention before, but this news surge differed in two ways. First, the overwhelming number of testimonies demonstrated that assault was not an anomaly but rather a common experience. Second, almost all the testimonies named the schools of both victim and perpetrator, demanding responses from school administrations.

I grew up in the same Sydney private school system from which many of the testimonies came. The schools named were schools that I knew. I could identify their uniforms. I competed on their sports grounds and in their classrooms. I read countless testimonies from students of my own school. The content of the testimonies didn't shock me, but the sheer number of them was stunning.

Over the summer, 16 current and former Australian high school students spoke to me over the phone. They came from a range of schools—public, private, single-sex, co-educational—across the states of New South Wales, Victoria, and Queensland. They told me about rumors, relationships, and what they wish they had known.

Maisy Lam-Po-Tang attended St. Catherine's School, a private all-girls school in Sydney. After reading the testimonies, Lam-Po-Tang and her friends talked about assaults that none of

them had shared before. "Even among my friends, I know no one who reported incidents that happened to them in high school," she said. The testimonies gave Lam-Po-Tang the courage to talk to her own parents.

"I actually told them about two experiences of sexual assault that [happened to me] in high school for the first time ever," she said.

To Contos, the high number of sexual assaults in secondary schools is inextricably tied to Australia's unique high school education system. Of all the high-income countries in the world, Australia has the largest independent (non-governmental) school sector and the highest proportion of single-sex schools, she explained in an interview with *The Politic*.

Advocates of single-sex schools cite the perceived academic advantage. They laud all-girls schools as places that build girls' confidence in a supportive environment. One 2017 study conducted by the Australian Council for Education Research showed that students at single-sex schools are more likely to outperform their peers at co-educational schools in reading and numeracy.

Others, however, argue that the single-sex system is unrepresentative of the real world. "It reinforces gender norms," Contos said. "It is exclusive and it is elite."

Australian students experience wildly varying sex education, if they receive one at all. In an interview with *The Politic*, sexual assault researcher and Churchill Fellow Katrina Marson explained why sex education in Australian high schools was so inconsistent.

Although there is currently a national curriculum that recommends teaching sex and consent education, it is only a voluntary guideline for states. "In Australia, the states and territories tend to fiercely guard their education as being one of the state responsibilities," Marson said.

The result is that while the state of Victoria's curriculum mandates consent education, schools in Western Australia can choose to not teach it at all. Private schools can also elect to diverge from a state's curriculum, giving them complete control over sex education.

Contos was most familiar with the culture and sex education of Sydney's private school system. Her campaign began with these specific schools in mind. "That's as far as I saw my reach going. I never imagined what would have happened," Contos admitted.

In less than a year, however, Teach Us Consent has exposed the failures of Australia's sex education framework nationwide.

AMONG THE TESTIMONIES, a handful of specific schools are overrepresented: Allegations against private all-boys schools from large cities are alarmingly frequent. For years, private all-boys schools had made headlines for scandals and assaults, but these usually faded without lasting consequence. For the first time, the issue is at the forefront of the national conversation as the public questions the prevalence of sexual assault among these schools.

James Greenup never liked the culture of Saint Ignatius' College Riverview, a private all-boys school in Sydney from which he graduated in 2020.

"It was a very hyper-masculine culture," Greenup said. "If you walked away from a [house party] or a night out and you hadn't hooked up, you were probably going to be made fun of the next day."

Contos began her campaign targeting these schools. Private schools have the resources and freedom to work beyond the curriculum, yet perpetually seemed to be at the center of the sexual assault testimonies.

Students who spoke to *The Politic* felt that private all-boys schools breed a culture of toxic masculinity and entitlement. Lam-Po-Tang said that the lack of diversity within private all-boys schools made students unable to "recognize women as individuals who also have successes and tribulations, lives going on."

Contos explained the link between this school culture and sexual assault.

"The number one reason someone perpetrates sexual assault is an entitlement over another's body," she said. "So these people, these young teenage boys, are not malicious, they're not sadistic, they're not rapists in the way we imagine rapists, but they feel entitled to another's body."

A 2019 graduate of the Scots College, a school often mentioned in the testimonies, spoke to *The Politic* anonymously in order to speak candidly. Scots is a private all-boys school in Sydney's Bellevue Hill, one of the richest suburbs in the country. Houses are sold at a median price of 6.4 million AUD (4.6 million USD). It is a school of proud tradition, with a bagpipe band once patronized by the Queen Mother.

The party culture at Scots, the graduate said, was intense.

Excessive drinking and drug-taking began early, when students were 14 and 15 years old. There were typical house parties, with about a hundred people, alcohol, and occasional parental supervision. Then, there were 'Meritons.'

At these exclusive gatherings, boys "with more money than they knew what to do with" would rent out

hotel penthouses or Airbnbs in the city.

"If you were invited to a 'Meriton', you'd expect drugs and alcohol and only teenagers," the graduate said. "[It would be] twenty to forty people all out of their minds."

Students dealt weed, MDMA, and cocaine. There was a constant danger for women at these parties, the graduate said. The boys' behaviour could turn aggressive. Stories of sexual assault would make the rounds in class, at sporting events, and on social media. "Everyone just dismissed it," the graduate said. "It was always linked to those parties."

Despite Scots' status as an elite educational institution, sex education was sparse at the time of the graduate's schooling. "It was just sexual reproduction and nothing to do with consent or contraceptives," he said. "Students didn't care too much and would joke about it afterwards."

The Cranbrook School, another Sydney private all-boys school, resembles Scots in several ways, and its name appears frequently in the testimonies. At Cranbrook, however, an anonymous Year 9 student described a more complete sex education.

From Year 7, classes cover a unit each year on sex education, including a unit in Year 8 on consent. In Year 9, the student said, the grade heard speeches and participated in activities on consent. The problem, however, was that the teenagers were not engaging with the lessons.

"Because people don't pay attention, no matter how much you teach, it's never going to make that much of a difference," the Cranbrook student said. "People are always going to think it has nothing to do with them."

Cranbrook's problem is not unique. In many schools even with sex and consent education mandated by a curriculum, teachers struggle to make an impact on young teenage audiences. Marson believes that the state of sex education is reflective of a broader inability to discuss sex that leaves students uninformed.

"Generally as a society, we need to get a whole lot better quickly at talking about relationships and sexuality," Marson said. "Young people don't need to be patronized, they don't need to be spoken to in metaphors around sex and sexuality."

SINCE FEBRUARY, PRIVATE CITY SCHOOLS have dominated national discourse on the testimonies and sexual assault. But this bias has left certain voices out of the story. In schools across Australia, students feel that a lack of education has endangered them.

In Tweed Heads, a small Gold Coast town eight hours north of Sydney, Jemma Wilson described a different school culture.

Wilson graduated in 2019 from a local co-educational private school on the New South Wales-Queensland border. The closest city is Brisbane, a two-hour drive up the coast. Tourists come for the beaches and the subtropical national parks where mangroves hang over the ocean. The weather is always good, and girls wear bikinis year-round. Asking for consent is not a part of everyday language. It was a small community and often victims of sexual assault would remain quiet because "you don't want to be known for that."

There was no mention of consent in Wilson's sex education class. "The only thing we were taught was how to put a condom on a banana, but my class missed it," Wilson said.

In Tweed Heads, the sexual assault testimonies that rocked Sydney schools barely made a wave. "None of my friends at home talked about it," Wilson said. "I heard nothing."

For many, the Teach Us Consent testimonies illuminated the insufficiency in their school education. Countless testimonies feature stories where girls did know they were assaulted because they had not been taught what rape was. Those with boyfriends did not realize they still had the right to refuse sex.

"Sex education amongst girls and women empowers them to recognise the control they have over their bodies."

"It's not enough to say that we need better consent education in boys' schools," Lam-Po-Tang said. "Sex education amongst girls and women empowers them to recognise the control they have over their bodies."

This education was happening too late in schools, if it happened at all. Contos's campaign calls for earlier and comprehensive sex and consent education. From primary school, actions such as asking permission to touch someone or their belongings can es-

tablish the value of boundaries, Contos explained. By Year 7, she explicitly wants discussions about sexual consent and its legal definitions.

"We need to teach that the type of rape that happens from someone you know is hard to identify," Contos said. "We need to teach that allowing misogynistic comments and having competitions with your friends about who can get with the most people are things that contribute to [rape culture]."

Her campaign had been putting pressure on the political agenda. Contos met with state education ministers and Prime Minister Scott Morrison earlier this year. Since then, Victoria has instituted mandatory consent education and, after a review, the Queensland government recommended introducing consent education from the age of 10.

Marson has traveled the world to investigate Relationships and Sexuality Education. She compared the Australian patchwork of state sex education curriculums to Germany, where education is also within the purview of the states, but the federal government leads, funds, and houses the department of research and resource development.

"It's not impossible to have that kind of symbiotic relationship between the federal level government and state governments," Marson said. "But we don't have that cohesion here."

Contos is campaigning for cohesion. As the Australian curriculum currently undergoes a once-in-six-years review, she argues for the inclusion of mandatory consent education, which would set a precedent for schools across the country. But she also believes that schools individually must implement actions to change school culture.

In response to the testimonies, Dr. Ian Lambert, principal of Scots College, met with Contos. In a subsequent letter to "Parents and Carers," he outlined action steps that Scots will take, which included a review of teaching programs, increased activities between boys' and girls' schools, an analysis of global research, and a series of parent educational opportunities.

Mandating national sex and consent education will require some political courage, Marson explained. Opposition comes from sectors of the population that believe sex education is something to be taught in homes and not in schools. Many religious groups also advocate abstinence-only sex education. But research, such as a 2017 study published in the *Journal of Adolescent Health*, shows that abstinence-only education is ineffective in preventing sex, teenage pregnancy, or sexually transmitted diseases. Instead, comprehensive sex education was a more successful measure.

Marson believes that teaching students about sex and consent is the best way to protect them.

"Information is not something that we can justify censoring for young people because of the concern that it will sexualize them," she said. "[Sexual assault] is something that is pervasive and starts a lot earlier than many would wish to acknowledge.

"We don't educate for the world as we'd like it to be," Marson said, recalling a quote she encountered in her research. "We educate for the world as it is. That's what we need to be doing."

The Yale Sexual Harassment and Assault Response & Education (SHARE) Center can be reached 24/7 at 203-432-2000 and is open 9 am - 5 pm weekdays at 55 Lock St, Lower Level.

"We don't educate for the world as we'd like it to be," Marson said, recalling a quote she encountered in her research. "We educate for the world as it is. That's what we need to be doing."

What Work Mo



Stories from the Rust Belt

eans



PHOTO COURTESY OF **ETHAN DODD**

BY **ETHAN DODD**

On a cool summer day, far away from a metropolis or highway, Donnie's Big Four Store is at a crossroads in the Appalachian Mountains just outside the small town of Sandy Hook in eastern Kentucky.

Donnie, the white-mustached owner of the store, watched as a woman and man with sunken eyes clambered into their big red pickup and vanished down the road. According to Donnie, they were drug addicts who didn't work.

"They don't want a job," he said, between smiles, referring to non-working people in his town. He offered these parting words before he left to attend to his cattle.

Many from the Rust Belt speak easily about the non-working people in their communities. They claim non-working people are welfare-dependent opioid addicts. But these non-working people – subjects of both

The skills workers develop in the over the course of their lives are transferable to other jobs

contempt and pity – are rare to come across. At times they seem more a spectral fear than tangible people.

The Rust Belt is coming to grips with the changing world of work. Automation, international competition, and industry consolidation are eating away at steel and other industries in the Rust Belt. As manufacturing jobs lose ground to professional white-collar work and low-wage service and care jobs, a new work ethic is developing and threatening to replace the one that created a blue-collar middle class. This new work ethic, predicated on advancement through education, is foreign to many of these parents and communities who do not want to abandon the blue-collar identity that orients them in the world.

This isn't a new story. American communities have always resisted economic change when their values were on the line — including the values underlying work. The disappearance of work has threatened the transmission of work ethic from parent to child. Now, people in the Rust Belt are not just worried about the future of work; they are uncertain if there will even be one.

IN THE RUST BELT, the value of hard work has grounded identity and community for generations. Steel jobs in the 19th century built the Rust Belt in all its families, communities, towns, and cities. For a few places, they still serve that role. "We are the community," said Pete Trinidad, the President of Local 6787 of United Steel Workers in Chesterton, Indiana. Chesterton, like much of northwest Indiana, has flourished thanks to the steel industry. "A job means everything," he said. It means feeding, clothing, and raising a middle-class family, retiring with dignity, and leading a decent life. Pete worked to win the union members' benefits: healthcare, pension, vacation, overtime and holiday pay, and a family wage above $100,000 in annual income. And these benefits don't require a bachelor's degree – thanks to the union, the plant will train you on-site. Pete is proud to say his mill has the best steel workers in the world.

Industrial work produced an identity based around men doing hands-on work in eight-hour shifts to provide for their families and contribute their part to national prosperity. Founded in 1800, Johnstown, Pennsylvania, quickly became a steel town and home to several immigrant groups who found opportunity in the mills. Rebuilding after the flood and fire of 1889 demonstrated the strength of the community, which was forged in steel. Mills meant more than a job. They represented an ethic, a way of life.

A work ethic sprang from the need that the mills never stop production. Eight-hour shifts ran from 7AM-3PM, 3PM-11PM, and 11PM-7AM. If a worker didn't show up for his shift, someone else would be forced to cover it, inculcating a strong sense of personal responsibility to show up and work hard. At the same time, workers and their families could rely on one another if in a bind because mill work structured the town – the community pitched in to make sure the kids didn't go hungry during strikes. Sharing the same work life meant workers would toil away side by side, blow off steam at the same dive bar, and go home to sleep – then repeat it all the next day. Contributing to the community and providing for one's family forged a certain dignity for workers that ensured the mills ran day and night – nothing else could.

Today, only remnants of the steel industry remain. The scrap metal factory on the outskirts of the town feeds on the former life of the steel mills, squeezing out what it can to support Johnstown. But the blue-collar work ethic that built Johnstown is hanging on for survival.

Samuel Esbasito sat on his retirement pension and his porch, watching the annual amateur baseball game begin in Johnstown. Sam's father came from Genoa, Italy, and worked in the mills in the 1960s to feed a family of 15 kids. Immigrant enclaves built communities around the mills. Through his scraggly grey beard, Sam mumbled, "Working hard won't help you anymore." Sam meant that hard work as he understood it cannot exist without the mills. But the mills are gone. That door is closed. "Everything is overseas. You get something made, it's overseas."

Sam recognized that work opportunities have been limited since the mills shut down, but he linked the phenomenon of not working to easy access to welfare benefits, such as food stamps. "People giving [non-working people] everything made them that way. People who don't wanna do nothing, who don't wanna work, don't



PHOTO COURTESY OF ***ETHAN DODD***

bring 'em to Johnstown."

Those who grew up with the mills may have a conception of hard work that excludes low-wage service employees, not just the non-working people they consider lazy or overly dependent.

"Them half-way house people, they work at McDonald's over there to pay their bills because they are afraid to go out and get a job. They don't want a job," Sam said.

According to Jennifer Klein, a history professor at Yale, the value of work is tied to the definitions of concepts like "breadwinner" and "masculinity." In a place like Johnstown, service jobs fall outside of a conception of hard work that had once meant working in the mills. This is a problem. Low-wage service and care jobs have been outpacing manufacturing jobs for several decades, a gap that will only continue to widen.

"If the mills were to leave, just look at what happened in Gary," said Pete Trinidad, who hails from nearby Chesterton.

Gary, Indiana, was once a true steel town — its plant manager was the mayor. Today, U.S. Steel owns the last mill in the city. As of 2015 it employed only 5,000 workers of the 30,000 it had in 1970. Thirty percent of Gary lives in poverty. The once-commercial main street of Broadway now largely consists of gas stations, dollar stores, and boarded-up buildings. Newly painted residences sit next to burned-down homes and tree houses. Only 20 minutes away from the Cleveland Cliffs mill in Chesterton, Gary is a warning for steel workers.

When a mill closes and workers lose their jobs, it can be devastating. The skills workers develop in the mill over the course of their lives are hardly transferable to other jobs. "It's very tough for someone in their 50s used to working in the steel mill environment to go out and work for Google," Pete said.

A 44-year-old bartender and former union representative at a paper mill, Danny witnessed the heroin epidemic kill his former classmates in Middletown, Ohio, just around when AK Steel locked out and replaced workers on strike. "This town ain't what it used to be. This town used to be a good town," Danny said.

YET THIS NARRATIVE of industrial decline in the Rust Belt and its effects on the community conceals why the white-collar opportunities that do spring forward are not always taken. One-time steel cities like Pittsburgh and Chicago have largely overcome the decline of their blue-collar industries. They now offer professional pathways in law, business, medicine, and academia, but only if one is able and willing to get an education.

Economic change has made the tools for education inaccessible to displaced blue-collar workers. Pittsburgh's Carnegie neighborhood library system is a case in point.

Suzy Waldo, manager of the South Side Carnegie Neighborhood Library, explained that over 10,000 "mill hunkies" came to the library in its opening week in 1909. The library met the needs of the vast working immigrant population by lending technological and mechanical books in numerous European languages. As one of Carnegie's 17 neighborhood libraries in Pittsburgh, it served its intended mission: "to engage the community in literacy and learning."

Then, when the mills shut down in the 1980s, white-collar workers gentrified much of Pittsburgh, including the South Side. Whereas the old working-class customer base used the library for educational purposes and workforce development, the new professional "lunch crowd" goes to the library for poetry readings and jazz performances. Blue-collar families are effectively shut out of this opportunity for lifelong education.

The clinging pride of the Steeler work ethic prevents many blue-collar parents from prioritizing the education of their kids, even though this is key to accessing professional opportunities. Their resistance often keeps their kids out of the world of work altogether.

A 21-year-old lifeguard manager at the pool behind the South Side Library, Jalen Pennix explained older men preach "hard work" and "getting dirty," even though that life is long gone. "Parents tell their kids to get union jobs," he said. "If you want to go to college and graduate college, they're proud of you, but they don't understand it, so you don't get the right motivation for it." Without strong parental support, Jalen said that pursuing higher education is more difficult and less familiar than joining a gang, given

how embedded gangs are in the neighborhood.

Parents are key to passing on a work ethic to their kids — in their absence, that work ethic dies. Barbara Barber, a grandmother from Chicago's West Side, said that a lot of the kids in the neighborhood call her "mom" because their parents are absent or addicts. Because gangs often feed, house, and look out for their members, many kids join gangs, so they have people they can call family. And without parental or community encouragement, Barbara said that many kids drop out of school around eighth grade.

Schools alone cannot motivate kids to seek out the white-collar opportunities that conflict with the work ethic and identity of their blue-collar parents. Though the teachers at Jalen's alma mater, Brashear High, try to cultivate their students' interests and skills, Jalen noted that they don't put up much of a fight when they run into motivational problems with students. "Nobody really cares, no one is really striving to do anything," he said.

It's almost too easy to craft a story of blue-collar parents and their kids who resist abandoning a way of life that they also can't preserve. With their work ethic dying, they may try to escape this trap through drugs and gangs. But this path of resistance further forecloses opportunities. Without an education, only the low-wage service and care jobs are left. And these too conflict with the value of hard work associated with the mills.

Blue-collar parents and kids resist the jobs of the new economy because the memory of the mills and what they meant lingers. The mills once grounded communities, built schools, and fed large families. They made the good life accessible through hard work alone.

This sociological picture is probably true in part. But its idealization of the past misses something crucial: Industrial work might not be what it was cracked up to be, and maybe it never was.

In the ghost town of Gary, it is strange that so few of the workers at U.S. Steel are from the city. Pete Trinidad from Chesterton explained most commute from nearby towns or neighboring states.

At 34, Terrence Woods has a felony from his past involvement with gangs and recently became homeless. A felony conviction is a scarlet letter in many workplaces. But it isn't the only thing that stopped Terrence from working at U.S. Steel. Terrence didn't want to. "That's the last place people decide to go work at," Terrence scoffed.

Terrence knew a lot of mill workers who got injured or died "falling asleep and going there drunk." Risks aside, many in Gary seem to have changed their minds about the value of industrial work since the mills left. "It's too much hard work," Terrence said. "It's dirty work." People from Gary would rather work at a Walmart, Family Dollar, or some other service job.

"I told my kids I'd kill 'em if I ever caught them working in that steel plant," Danny said. Though he cited the risk of injury and death, he added, "They make good livings, but they don't have a whole lot of life." In the sometimes 90-hour workweek, the factory becomes a black hole. "It's your own greed too. If you want all that money, you can work as many hours as you want. They're not doing it against their wills, but they look back over the years and think, 'I could've done a lot more than that.'"

Even with his rose-tinted glasses, Pete Trinidad recognized how racking up hours at the mill can affect family life. As union president, he's helped steel workers who have told him, "My wife left me. My kids don't know who I am."

Given changing attitudes and the risks to health, family, and well-being, these perspectives suggest that mill work may not be worth saving.

"If your choice is working in the hazardous waste pit or not working, is not working really an irrational choice?" Klein said.

LIKE OTHER RUST BELT TOWNS and cities, Sandy Hook, Kentucky, is more than its industry. Though industrial jobs probably drew people there in the first place, they are not why people want to stay anymore. They want to preserve their way of life.

Sandy Hook's amateur genealogist Anita Skaggs, loves to talk and laugh, but she grew quiet and cautious when asked about drug addiction in her community. "We are so much more than poverty," she said with a kind Southern drawl.

"There's no place I'd rather live," Anita's husband, Gobel, said. "No better place to live and raise your kids."

Sandy Hook has no major waterways, rails, or highways, but Gobel and Anita like it this way. They are far away from the drugs and crime of the city, not to mention the sirens and odors. Tucked away in the peace and quiet of the mountains where the sky is clear even when it's grey, Sandy Hook feels Edenic.

The Kentucky work ethic has stubbornly defied Sandy Hook's natural obstacles to industry. Farms are

perched in every flat plot of land, no matter how small or high up in the mountains. Whether bulldozing coal or welding, Gobel has never worked closer than 45 minutes out of town. Talking about Gobel's father, Anita said, "Daddy worked as hard for one dollar as for thirty. It was the way he was brought up; you do the job."

But when the government stopped guaranteeing the minimum price of tobacco and there was no more coal left to mine, the town's main industries dried up, leaving many without jobs. But the people didn't want to leave.

Resistance to economic migration can take many forms. Some opt out of work entirely even if it earns them the contempt of the community. Anita explained, "These people don't want to leave, so they figure out public assistance generation to generation to sustain their way of life."

Others persevere to make a living with what is still available. A former coal bulldozer, Gobel got technical training and commutes longer distances to be a welder. Anita runs an inn with aims of investing in tourism.

Michael Denning, a professor of American Studies at Yale, said, "Work changes faster than our ideas about work under capitalism, which is different from other kinds of societies in which you might have done the work of your parents and grandparents." Market forces, indifferent to human dignity, disrupt the idea of work that grounds communities, forcing people to find new ways to justify why they work.

As much as resisting economic change is part of Sandy Hook's history, the frustration and pity directed at non-working people might signal a deeper fear — that the future of work may not leave space for resistance.

The post-industrial economy is upon us, and there is no going back. At some point, market forces will compel the industrial working class to ask if preserving an antiquated work life is viable under capitalism. Will these people be able to accept that service and care jobs and higher education may be the "hard work" of a new work ethic? Or rather than resist by refusing to work, will they rebel against the economic system that routinely hollows out their identity?

For now though, the resistance to preserve the blue-collar work ethic lives on.

The hope that Sandy Hook's past has a future is enshrined in Donnie's Big Four Store. A massive airplane-windmill contraption is suspended on a pole out front. The lone gas pump must have rusted since the 1950s. Inside, Donnie watches a Western on a flatscreen. His antique collection and hand-crafted metal sculptures share the shelves with pickled pork hocks and bottles of pop. Vintage guns and a beehive hang from the ceiling. Donnie stands at the cash register in his overalls with his sun-worn, cheerful face. And at the bottom of the glass cashier booth is a little red hat that once read Trump 2020. Now, a metal number 4 is pressed over the last 0.



PHOTO COURTESY OF ***ETHAN DODD***

BY **KATE REYNOLDS**

As of October 8, Texas' SB 8 law is back in effect. Two days earlier, US District Judge Robert Pitman had paused the law's enforcement, ruling in favor of a suit the Biden administration brought against SB 8. The 5th Circuit Court of Appeals overturned Pitman's decision, granting the law temporary reprieve. But the 5th Court's ruling was an emergency decision and was explicitly short-term. Biden's Department of Justice has already appealed the decision.

Citizen v. Citizen

Vigilantism in Texas Abortion Rights Debate

GROWING UP IN A SMALL TOWN in South Texas, aggressive abortion restrictions come as no surprise to Emerald Belmarez.

Emerald was born and raised in the Rio Grande Valley, the most impoverished region in the state — and the least safe for reproductive rights. Only one abortion clinic serves a population of 1.3 million Texans.

For her entire life, anti-abortion activists have lobbied to limit access to reproductive healthcare, often taking matters into their own hands through protests and camp-outs at clinics. "I have had friends in the past who have been pushed, shoved, yelled at with dirty language while entering abortion clinics. They had people taking pictures of their license plates," Emerald told *The Politic*.

Now, Texas has enacted an abortion law that gives the people who protest outside clinics the power to take legal action against those inside.

At midnight on September 1, 2021, Texas's Senate Bill 8 officially became law, inheriting the title of the most restrictive abortion measure in the nation. The bill was initially passed in May 2021, and was set to go into effect in September. In the days leading up to this deadline, abortion rights groups brought a case to the Supreme Court alleging the law was unconstitutional. In a narrow 5-4 vote, the Supreme Court refused to block the law. The decision was not an affirmation of the law's constitutionality, but rather a provisional ruling in an attempt to force the lower federal courts to address the complications of the case before it comes to the Court again.

Texas' SB 8 is unique not only in its restrictiveness — it bans abortions after six weeks of pregnancy, with no exceptions for cases of rape or incest — but in the system of enforcement that it implements. Under SB 8, any private citizen can sue anybody in Texas who they accuse of "aiding and abetting" an abortion performed after that 6-week period.

The ability to sue "anybody" really does mean anybody — from Uber drivers who transport people to clinics to supportive family members, from doctors who provide abortions to people who donate to abortion rights groups online, from next-door neighbors to lifelong friends. By making everyone vulnerable to litigation, the law creates inherent distrust between citizens. The person bringing forward the lawsuit does not need to have any personal connection to or stake in the abortion to sue. If the plaintiff wins, they are entitled to at least $10,000 and are repaid their legal fees. If the defendant wins, they receive nothing — not even reimbursement for their fees.

The law even accounts for possible legal challenges that could result in pauses of its enforcement. If it is temporarily halted then later reinstated by another judge, citizens can sue the aiders and abetters of any abortions provided in the period when the law was on pause. The architects of the law ensured in its writing that it will remain functionally in effect even if it has been temporarily halted.

The enforcement of the bill empowers private citizens as the reporters of any violations, abdicating responsibility from the government to prevent Texans from getting abortions. In fact, SB 8 explicitly bans state officials from suing anyone, ensuring that only private citizens will be accountable for monitoring the actions of others. Many social conservatives have embraced this system of enforcement, hoping to prevent the legal challenges that are usually the death knell to anti-abortion laws.

Republican politicians have been attempting for years, with some success, to gut the Supreme Court's ruling in *Roe v. Wade*, which dictated that individuals have a Constitutional right to obtain an abortion, and that the government cannot overly restrict that right. States with conservative governors or legislatures have passed a wide range of policies to limit abortion access, like tying the illegality of abortion to detection of the embryonic heartbeat or forcing people seeking abortions to undergo "training" on alternatives such as adoption. With Texas' SB 8 bill, anti-abortion advocates may have finally found the winning strategy to subvert the seminal 1973 decision.

By deputizing private citizens as the enforcers of the law in SB 8, many legal scholars have pointed out that Texas has technically not violated the Court's conclusion in *Roe* that governments cannot place undue burdens on abortion access. After all, the government is not the one enabled to sue defendants for helping people get abortions.

Matthew Wilson, a professor of political science at Southern Methodist University in Texas, explained that SB 8's enforcement mechanism of "civil lawsuits filed by private individuals is

specifically an attempt to circumvent legal challenges" that would threaten to strike down the bill. To many Texans, the law seems invincible. "It was structured in a way where there would be no way to challenge it in the court," said Emerald, who now works as a paralegal at a Texas law firm.

LAWS THAT RELY ON private citizens reporting one another is not a new technique. Statutes prohibiting harassment in the workplace, for example, are usually upheld through civil lawsuits, brought by the victim against the perpetrator or the employer. Anti-discrimination laws, like Title IX, similarly enable citizens to file complaints if they feel they have been the victim of — or witness to — discrimination. David Noll, a professor of law at Rutgers Law School, has spent recent months researching SB 8 and similar bills that place the burden of enforcement on private citizens. According to Noll, "private lawsuits have been crucial to the development of employment discrimination law, and certain aspects of consumer law, and securities law." SB 8, though, weaponizes private enforcement laws to restrict civil liberties, not protect them.

In recent years, Republican-controlled state legislatures have pushed for bills with this enforcement mechanism in order to marginalize vulnerable groups by enabling private citizens to target them. In the mid-2010s, state legislatures across the country saw a wave of anti-trans lobbying and legislation, often through "bathroom bills" that forbade transgender or gender non-conforming Americans from using bathrooms or lockers in public buildings that did not match the biological sex they were assigned at birth.

These anti-trans bathroom bills are similar to Texas' SB 8 bill not just in their political goal of controlling the bodies and movements of entire swaths of the population, but also in their enforcement and twisted system of rewards. Most of the proposed policies made citizens partially or fully responsible for upholding them, and students could sue their schools if they saw a trans person violating the law by using the "wrong" bathroom or locker. Many of the bills advocated for $2,500 in damages to be awarded to anyone who sued after witnessing these rule-breaks. Much like SB 8, the anti-trans bills relied on the fear that anyone could sue to scare transgender individuals away from using their preferred bathroom.

This form of state-sanctioned vigilante justice, which incentivizes private citizens to control the bodies of their peers, neighbors, and colleagues with a hefty financial reward, even predates the complicated politics of the 21st century.

In the Antebellum Era, militias made up of white Southern slave-owners emerged as a method of hunting down escaped slaves. These slave patrols received the government's stamp of approval with the Fugitive Slave Acts of 1793 and 1850, which dictated that slave-owners had the right to search for escapees in other states. Members of these militias flocked to the North to track down enslaved people and return them to their owners for a monetary reward. The militias could also report anyone who attempted to harbor or help escaped slaves, and force them to pay a $1,000 penalty. The financial incentives that were attached to enforcing this system of slave surveillance are eerily similar to the bounties in Texas' SB 8 bill.

TEXAS HAS ALREADY SEEN the galvanization of government-endorsed vigilantism come into full force. Although no lawsuits have yet been brought against someone for aiding or abetting an abortion, tiplines have popped up on websites run by anti-abortion organizations, encouraging users to submit information that could be used as evidence. After Dr. Alan Braid, a San Antonio physician, wrote in an op-ed for *The Washington Post* that he has continued to provide abortions to Texans, there was a significant increase in pro-life protestors outside his office. Just days after the bill officially became law, an opponent of abortion who protests outside clinics told NBC News that SB 8 "is what we always prayed for."

Some enforcers have resorted to spamming abortion clinics with false requests for abortions, in attempts to "catch" staff who are still willing to provide or assist with abortions — a ruse intended solely to find opportunities for litigation. Two abortion funds in Texas, Frontera Fund and West Fund, had to stop operating their hotlines because they have been inundated with fake calls and texts that could put volunteers at risk of liability.

Because of SB 8, reproductive services could become enveloped in a surveillance state. Noll explained that "when you think about what's necessary to file a lawsuit — you have to collect information about other people, you have to engage in surveillance of them." Supporters of abortion in Texas have already faced infringements on their privacy, even without SB 8. According to Emerald, "Pro-lifers have this database that keeps track of some of the top reproductive advocacy organizations and activists in the Rio Grande Valley. They keep tabs on them, and keep tabs on the women who go into these clinics." SB 8 makes this aggressive monitoring profitable, transforming knowledge about a pregnant person's healthcare decisions into a commodity.

Experts believe that the law will discourage pregnant people from confiding in doctors, family, and friends, out of fear of implicating them in a crime. It makes it difficult for those who want abortions to know who to turn to when everyone is a prospective plaintiff. "Anyone can sue, and you don't know anybody's kind of stance on particular issues. It makes it harder to know who and who not to talk about these things," said Emerald.

For Emerald, and likely for many other Texans, the law's weaponization of widespread distrust between citizens has a painfully personal edge. "Some of my family are pretty conservative and I know that they have the

power to go and sue… the providers who are aiding or abetting the process of getting an abortion," she told me. One of Emerald's uncles is a conservative Christian who works as a border patrol agent and they clash on nearly every political issue, including abortion rights. The implementation of SB 8 could transform their disagreements from uncomfortable family dinners into punitive legal action.

THE THREAT OF LAWSUITS under SB 8 has already had tangible impacts on abortion access for Texans. "It really does put a crimp in the operations of abortion clinics in Texas," said Wilson. "They are very wary about operating because of the massive potential liability that they could face." After the law took effect, Planned Parenthood and Whole Women's Health, two major abortion providers in Texas, announced that they would comply with the bill and would direct the dozens of clinics under their purview to stop performing abortions if a fetal heartbeat was detected.

Texas' innovative approach to weakening abortion rights is a blueprint that other Republican-controlled states will likely follow. Just days after the Texas bill became law, *The Washington Post* reported that GOP officials in seven states had already indicated their intention to pass similar laws. On September 2 — when SB 8 had only been in effect for a day — a Republican state senator in Arkansas, Jason Rapert, published a bill modeled after SB 8, with fill-in-the-blank areas included so that other states could easily adopt the legislation. "The statutes can be literally copied and pasted, with only minor modifications for other states," said Noll. "I do expect it to spread to other states."

If bills like SB 8 are adopted across the country, the intimidation tactics that have found a home in Texas will spread with them. The laws will breed an environment of paranoia that overwhelmingly weighs on doctors, volunteers, patients, and anyone tangentially related to the provision of abortion services. "It goes back to the way the bill itself is structured. Anyone — just anyone — can sue, so I think it really brings women stress and increases the distrust that they already have," said Emerald.

The bill has left Emerald feeling vulnerable and anxious for the future. "If for whatever reason I need [an abortion], I have no support whatsoever," she said. Millions of people who may need abortions — in and out of Texas — are also afraid. "My story isn't the only one," Emerald said. "It scares me because it's like, who do I turn to? I can't. I can't turn to my family anymore, and I can't turn to my government."

"It scares me because it's like, who do I turn to? I can't. I can't turn to my family anymore, and I can't turn to my government."

A NATION ABLAZE

Erdogan and the Fires He Can't Put Out



BY **GAMZE KAZAKOGLU**

WHEN DERYA KIR, a 25-year old lawyer who works as a volunteer at Greenpeace, travelled from his home to provide emergency aid to villages along the Mediterranean coast of Turkey last August, he came across an old lady sitting outside of her fire-blackened house. Kır asked what the woman planned to do next. She

ON



PHOTO COURTESY OF ***ORMAN YANGINLARI***

did not know; all of her belongings, life savings, and animals had been consumed by the fire.

"People were just sitting outside of their houses, but they didn't have anywhere to go," Kır said in an interview with *The Politic*. With their houses turned to ash and no material possessions left, the woman's fellow villagers, like her, had nothing to do but wait.

This elderly woman is one of hundreds whose lives were drastically changed in the wake of Turkey's wildfires, which blazed through the country's Aegean and Mediterranean coasts this summer. The fires in Turkey were some of the many which affected countries worldwide, including Greece, Lebanon, Italy, Spain, France, the United States, and New Zealand.

Turkey was ravaged by 133 fires in the first half of 2021 alone. Although wildfires are not uncommon in the region during the summer months — between the years of 2008 and 2020, an average of 43 fires hit Turkey yearly — heatwaves in the area make it easier

for fires to spread. While the cause of the Mediterranean fires still remains unknown, experts believe that climate change drives the extreme weather events. The Turkish government initially responded to the fires by blaming outlawed Kurdish militant groups, alleging arson. Turkish citizens and the international community, however, criticized the governments' response to and management of the crisis. Citizens of Turkey and the international community have roundly criticized the Turkish government for its inefficient management of the fires and its reluctance to project weakness and accept foreign aid.

Wildfires are a reality, and we will learn to live with them.

Çağatay Tavşanoğlu, an ecologist at Hacettepe University in Ankara who specializes in vegetation and fire ecology, explained in an interview with *The Politic* that wildfires are caused by the confluence of various factors, including rural-urban migration, tourism, forestation activities and climate change. According to Tavşanoğlu, a well-intentioned forestation project begun by the Turkish government several decades ago to fill natural gaps in forest growth has actually made it more difficult to contain the fires. Meanwhile, human practices, like mining, creating dumpsites, and the heavy use of industrial machines, also contribute to the ignition of the blazes, as they increase the chances of an initial spark.

At the onset of the fires, prior even to engaging emergency state firefighting responses, the ruling government, led by Turkish Prime Minister Recep Tayyip Erdoğan, publicly blamed Kurdish militants in an apparent attempt to evade responsibility. Government trolls helped spread disinformation on social media, explained Senem Aydın Düzgit, a Professor of International Relations at the Faculty of Arts and Social Sciences of Sabancı University. The allegations mainly centered around the Kurdistan Workers' Party (PKK), an armed Kurdish militant political organization present in southeastern Turkey. While PKK historically sought an independent Kurdish state, its aims have shifted towards autonomy and increased rights for Kurds, an ethnic group native to the mountainous region of Kurdistan in West Asia that includes territories within Turkey. Turkey has long opposed Kurdish self-determination and the preservation of Kurdish culture.

But while intentional arson offers a provocative explanation for the recent wildfires, it is unlikely that an organized group would or could set fires of this quantity and scale, according to Tavşanoğlu.

Despite their efforts to dodge public censure, the Turkish government has received domestic and international criticism for its management of the crisis. According to Erdoğan Atmış, a forestry policy expert, evidence suggested that two decades of rule by the Justice and Development Party (AKP) have fueled the unchecked spread of the wildfires.

Every year, significant time and money is allocated to fire rescue and response in Turkey, including advanced camera and drone technology to better detect wildfires from kilometers away. But Turkey is still woefully underprepared. Although Erdoğan currently has a private fleet of 13 planes, Turkey does not own a single operational firefighting plane. By contrast, there are 39 firefighting planes in neighboring country Greece's inventory.

The problem isn't just on the national level: The absence of communication between local municipalities, humanitarian aid NGOs, and the national government has also contributed to confusion and inaction.

As far as he has observed, the people involved in the fire extinguishing process were mostly volunteers, whose actual jobs varied from bankers to engineers to teachers. "These are people who did not even light a fire in their lives," said Kır. "They [officials] soon needed help and allowed us [volunteers] to enter the area. You see it is burning, you know there are not enough people to help and there is not another alternative. I don't think there is anywhere else where you could feel how there is no government and how insufficient the government is to this extent."

Untrained volunteer enthusiasm cannot be the solution to governmental inadequacy, particularly when the job demands strategic decision making, and, at the very least, professional safety precautions.

Bureaucratic barriers stonewalled emergency interventions that firefighters often needed to make. For

example, government teams often could not obtain permission to cut the trees necessary to put safe distances between themselves and the wildfires. When veterinarians and volunteers independently tried to rescue animals, their attempts were also stonewalled by state institutions.

"The government wanted everything to be in its hands, to regulate everything and make all the decisions," Kır said.

TURKISH CITIZENS and the international community have harshly criticized Turkey's refusal to accept aid from the EU and other western nations. Turkey eventually was forced to accept help from several non-EU countries, including Azerbaijan, Iran, Russia and Ukraine.

Local mayors in regions affected by the fires also appealed to the public on social media channels with a trending Twitter campaign called #HelpTurkey after they couldn't get the help they had anticipated from the government. Public pressure against the Turkish government mounted as live videos from volunteers and foreign reporters revealed the real conditions of the Turkish fires.

But government officials interpreted the hashtags and videos as embarrassing signs of Turkey's weakness. Erdoğan's primary spokesman, Fahrettin Altun, tweeted, "Our Turkey is strong. Our state is standing tall," while promoting an anti-campaign under the name of #StrongTürkiye. while Turkey's broadcasting authority ordered television networks to limit news coverage of the wildfires, reporting as if the wildfires had already been extinguished.

"There is a national narrative, a national identity that the government is trying to create, which is that Turkey is self-sufficient, and what's more, helping other countries across the world. This is especially a discourse against the West," explained Düzgit. "West adverseness is not something new in Turkey, it has been here for years. However, this situation isn't only about that. It's both West adverseness and a superior identity discourse of how self-capable Turkey is and how capable it is to help others."

NINE PEOPLE and more than 2,000 farm animals died in this summer's wildfires. More than 30 villages were decimated, 4,000 tourists and staff were evacuated, and 160,000 acres of forest were destroyed. If the present government chooses not to prepare for the coming summers, future wildfires will have even more disastrous consequences for Turkey's fire-torn populations.

Many measures need to be taken to protect the country against wildfires in the long term, one being the country's ratification of the Paris Climate Agreement. While Turkey signed the Agreement when it was first adopted by 196 parties in 2015, Erdoğan said in late September that his administration will present the agreement to the Turkish Grand National Assembly for its formal approval. This means that the country will start to shape its domestic policies to greatly reduce carbon emissions.

According to Düzgit, Erdoğan's "sudden" urgency toward the environmental crisis might just be a political tactic to gain international approval — particularly given the country's record of unfriendly environmental policies and the numerous coal plants still being planned for development.

"[Erdoğan] returned from America and started to say completely different things about climate. He said that Turkey will immediately sign the Paris Climate Agreement and gave ostentatious dates for transferring to the carbon-free period. Yet, I am not sure if the real reason behind this is climate change and the wildfires we went through last summer, or, as Turkey has started to become internationally estranged day by day, a narrative that Turkey can sell, especially to America," said Düzgit.

KIR AND HIS FELLOW VOLUNTEERS are doing what they can to prepare for the likelihood that they will have to fend off more blazes soon. Their on-the-ground work has led to small but meaningful improvements: They're currently providing fire shoes to villagers whose shoes — oftentimes rawhide sandals called çarıks — would otherwise melt.

Still, taking meaningful steps to address these wildfires requires more than new pairs of shoes.

Turkey must successfully overcome its historically fraught tensions with the West and set aside its age-old national identity crisis to prioritize the universal crisis of climate change.

If not, the politicization of forest wildfires will continue to take lives and destroy ecosystems. The people who bear the brunt of these political impasses are often already marginalized communities, like the Kurdish minorities residing in Turkey.

"We shouldn't forget wildfires are natural. They have been happening for over 400 million years. They were here before us and will continue to happen," Tavşanoğlu said. "What makes them a disaster are human beings.... Policy changes, forest management, and so on: these are all adjustable and controllable things, because they are caused by us. Wildfires are a reality, and we will learn to live with them."



PHOTO COURTESY OF ***ORMAN YANGINLARI***

Paradise



Crested Butte, Crested Butte Hostel

A Housing Crisis Hits W
America's Resort Tow

BY: **ANASTASIA HUFHAM**



PHOTO COURTESY OF ***ANASTASIA HUFHAM***

Jackson Hole, the Casper Star-Tribune

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IN LATE JULY, the wildflowers are at their peak in Crested Butte, Colorado. Snow lingers on the north-facing shadows of the Elk Range while green aspens blanket the valley. It doesn't get much better than summer in the alpine, and tourists and second-home owners know it.

Downtown, streets are lined with colorful buildings housing restaurants, museums, and shops characteristic of an old coal-mining town. Since Crested Butte is a popular ski destination in the winter months, outdoor gear lines store windows. Blank stretches of green run down the mountainsides revealing slopes and motionless ski lifts. Tourists weave in and out of storefronts to grab souvenirs and gear up for outdoor adventures.

But these idyllic appearances don't tell the whole story. While its lively, bustling sidewalks portray a happy-go-lucky, laid-back mountain town, the residents of Crested Butte have been struggling to keep up with increasing visitor numbers. The last week of July, Butte Bagels, a breakfast joint in town, propped up a handwritten sign for tourists to read:

"We write to inform you that our community is collapsing and our hearts are breaking. Every restaurant and retail business in this valley is experiencing an employee shortage due to the housing crisis," the sobering sign read — a stark contrast to the restaurant's cheery red and purple walls.

"At least one of the people you interact with in this restaurant will leave here and not have a house to sleep in tonight — not because they can't afford it, but because there are no houses left to rent," Butte Bagels' sign continued. "We are all reaching a breaking point and need your help, PLEASE."

Across the West, gateway communities to America's most beautiful places are suffering from an extreme affordable housing crisis. Developers

have prioritized luxury townhomes for second-home owners — who often only utilize those homes for a small fraction of the year — over high-density housing for locals, rendering it nearly impossible for local businesses to hold onto long-term employees. Resort towns' increasing popularity and limited housing mean skyrocketing real estate prices, and an increase in short-term rentals has led to less room for residents and increasing rent. The pandemic only made matters worse as out-of-towners flooded these small towns to work remotely. Elected officials, business leaders, and regional experts have weighed in on potential solutions, but no clear solutions have emerged.

Jackson Hole, Wyoming, another small mountain community and a luxury ski town, is also suffering from the affordable housing crisis. A starting point for visitors to Grand Teton and Yellowstone National Parks, the town is also home to some of the most challenging ski slopes in the West at Jackson Hole Mountain Resort.

Anna Olson, president and CEO of the Jackson Hole Chamber of Commerce, shed light on the problem of staff shortages for local businesses — particularly small businesses. "It's never been cheap to live here, but right now it's about the lack of inventory," she told *The Politic*.

Olson said that in Jackson, the pandemic contributed to a "lost inventory of workers" since many started working remotely. In the past year and a half, there was also faster and more prevalent turnover for homes in Jackson's typical rental pool, particularly condominiums, purchased by new families or remote workers.

With the Teton County Housing Department, the Jackson Hole Chamber of Commerce conducted a survey of chamber members about their challenges in hiring employees in May 2021. Half of the 250 businesses that responded said they are considering adjusting their operations due to the town's staffing shortage, in part caused by a lack of affordable housing.

Businesses said that there is at most one candidate for every three open positions. Almost all surveyed businesses — 94.5% — said that housing is "at the core of their staffing struggles." 44% help their employees with housing through subsidization, housing stipends, or on-site housing, and 55% reported losing one to five employees due to housing problems in the previous six months.

Jackson Hole Mountain Resort, the national parks, and hotels in the town have been providing housing for their employees for decades. But with the affordable housing shortage, small businesses are having to help house their employees, which imposes an additional set of logistical and financial burdens on small businesses that don't have more than five employees, let alone human resource departments.

On July 7 of this year, Crested Butte's town council declared an affordable housing emergency. Town officials said that the town's shortage of housing, specifically affordable housing, was creating a significant burden on Crested Butte's businesses, communities, and values.

"Since I've been mayor, I've always tried to make this the best possible town to live in," Crested Butte Mayor Jim Schmidt told *The Politic*. In the summer of 1976, Schmidt grew tired of the banking industry "rat race" and headed west on his motorcycle. He stumbled upon the mountain town and hasn't left since.

The town now known as the "Gateway to the Elk Mountains" rests on ancestral Ute land. Placer miners arrived in the area in the 1860s, and Crested Butte itself was established in 1878 for its coal mining potential. The 19th century brought a railroad, hotels, saloons, and a telephone line to Crested Butte, as well as white coal miners. Crested Butte was a mining town until 1952, when the Big Mine closed, leading to a decline in population and jobs. But the remaining residents hung on and saw the opening of a ski area on Crested Butte Mountain featuring the state's first gondola. Today, the town is known widely for its year-round natural beauty and outdoor recreation opportunities.

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After 31 years serving in Crested Butte's local government, Schmidt has seen the town grow from a quiet skier's paradise to a swamped tourist destination. When he arrived, "the skier-types and young hippies" had little problem finding housing. But since Crested Butte got on the map as a year-round road trip destination, "things have been getting tighter and tighter," Schmidt said, resigned.

In an attempt to assuage the problem, the town implemented a band-aid solution this July: allowing workers to

tent camp or park their mobile homes on residentially zoned private property until October 15. But the measure was ineffective: "There was only like, one taker," Schmidt said. Workers living in tents or RVs would rather stay in nearby national forests, a more scenic option than someone's backyard.

The lack of housing in Crested Butte is multifaceted. First, 78%of Gunnison County is federal land belonging to national forests and the Bureau of Land Management, so it's off-limits to development.

That leaves relatively little private land, where developers don't have a financial incentive to build low-end, high-density affordable housing. "[Developers] can make a lot more money selling empty lots," which Schmidt reported are going for millions.

But second-home owners only reside in Crested Butte for a few months. The town's most envied real estate, rustic-looking mansions on mountainsides, sit empty for the rest of the year.

"In our tiny newspaper, you'll see three pages of ads for 'Help Wanted' and then a column that lists three or four units for rent," Schmidt said. Listings include houses for $3,500 a month and one-bedroom apartments for $1,500 a month. "There's just not much out there," he continued.

Next, the advent of Airbnb and VRBO in the last decade revolutionized the short-term rental market. Suddenly, local realtors were rendered obsolete by the internet, and residents rented rooms to tourists for higher prices rather than renting to local workers. The lack of space and rising prices mean that even trailer homes are becoming unattainable.

"I understand that it just made it much more financially attractive for somebody to do short-term rentals," Schmidt said. "You can't buy a house for a million dollars and then rent it out to somebody at a reasonable rate."

As a result, few if any local police officers and snowplow drivers — who make modest salaries — can afford to live in the town of Crested Butte. Many live in nearby Gunnison, which is more affordable. "That's pretty tough for a quick call," said Schmidt. But even in Gunnison, he continued, the local college and hospital have had trouble holding onto professors and doctors, who turned down jobs because they couldn't find suitable housing, even with their relatively sizable salaries.

The property values in the town are so high that some residents plan to use their real estate as their retirement funds, Schmidt said. People who moved to Crested Butte decades ago and purchased more modestly-priced property are now sitting on houses worth millions. If or when they sell, they could buy homes "twice as big" in other, cheaper Colorado cities like Grand Junction or Montrose, and put the difference into their bank accounts.

The coronavirus pandemic further exacerbated and exposed the severity of the West's housing crisis. Visitors seeking wide-open spaces to stave off cabin fever chose places like Crested Butte and Jackson Hole where they stayed in Airbnbs and VRBOs, environments more easily controlled for health concerns, rather than local hotels.

"It's just amazing how this last year with COVID slammed down the amount of affordable stuff — or any stuff — that's out there," said Schmidt.

When the pandemic hit, city dwellers sought to escape crowded metropolitan areas in favor of places where they could easily do remote work, complete with incomparable landscapes and accessible amenities. Both Crested Butte and Jackson Hole fit these criteria. These white-collar workers make enough money to afford housing in these spaces; some had wanted to make the move for years while others, after settling in, decided to stay.

Either way, these former city dwellers have contributed to rising real estate prices and limited housing. During the height of the pandemic, more people wanted to move to these places, making the properties more valuable (and expensive), which priced out local workers.

Currently, 60% of Jackson Hole's employees live in the town, according to Olson, and the goal is to increase that fraction to 65%. Many Jackson workers have made the move to Victor, Idaho, just over the state line. Commuter opportunities there are endless, according to Olson. "There's vast amounts of land there," said Olson. "Nobody lived over the hill in Victor when I moved here, and now lots of people live there. It's becoming much more of a robust community."

To support a greater number of commuters, Jackson's local government may have to invest in public

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Butte have been struggling
asing visitor numbers.

transportation from these peripheral towns to Jackson, or local businesses may have to allow employees to work from home or have more flexible schedules. "We'll just have to make different choices," said Olson.

One option for local employees is to live further away from Jackson, where housing prices are cheaper. But Jonathan Thompson, a lifelong resident of the West and contributor to the American West-focused publication *High Country News*, has dubbed this phenomenon "the old 'drive till you qualify' non-policy of affordable housing." This "non-policy" comes at the cost of time and gas expenses to local workers.

Thompson has spent the majority of his life reporting on the unique issues facing his home region, and he argues that "driving until you qualify" can only last so long.

Take Aspen, Colorado, for example, where people drive up to 90 miles to "qualify" for housing near the high-end ski resort town that they can afford. Towns were created because workers couldn't afford to live in the affluent ski town, such as Basalt, which is now also too expensive for most workers. "Now, that's where the attorneys and doctors live," Thompson said. "They still need to find affordable housing, too." Further west, others are driven to Silt and Grand Junction near the Colorado-Utah state line.

"There's this interesting dynamic where those [towns] end up creating their own communities and eventually their own economies, so those employees don't need to drive to Aspen anymore," Thompson explained. "They might get paid a little bit less, but they can work in a restaurant or a hotel, or they can work for the wealthy people who then end up in those towns — so then you've taken away from Aspen's labor market."

But while others might wring their hands at the lack of affordable housing and predict a doomsday wherein all businesses within a resort town will have to shut down, Olson offers a more optimistic view. "It's just adaptation," she said. "We'll just have to make different choices… but you don't just walk away from it."

SO, WHAT *CAN* BE DONE about the West's affordable housing crisis?

This November, Crested Butte's ballot features three different potential taxes that could help mediate the issue. The first is to raise the town's sales tax by half a cent to go towards affordable housing development projects. The second is to raise the current 5% excise tax on all vacation rentals and short-term rentals, which went into effect in 2017 and contributes to the towns' affordable housing fund, to 7.5%, in an attempt to limit the number of short-term rentals in town and increase revenue for affordable housing projects.

The third, and most controversial, is to levy a second-home tax on homes not occupied by year-round residents. Schmidt explained this "empty home tax" would be a flat fee of $2,500 on those who don't live in their Crested Butte homes for at least six months out of the year.

"I think it's totally unfair because it's not based on the value of the property," Schmidt said, arguing that some longtime Crested Butte homeowners could be affected. But Crested Butte Finance Director Rob Zillioux told *Crested Butte News* that the policy could "thwart" the town's trend of becoming like "other resort communities in the West like Moab, Aspen and Jackson, that went from nice communities to 'amusement parks for the wealthy.'"

"If we build [more], we'll just need more. If we build [more] and the service is real good at the restaurants, we'll need more restaurants, then more people will come here, and then we'll need more housing," said Schmidt. "It's a kind of unending spiral."

Down the Interstate 70 corridor in Colorado, Vail, another luxury ski town, launched a new deed restriction program called Vail InDEED in 2017. The town will purchase deed restrictions from homeowners and developers, which will limit the occupancy of a given unit to workers in Eagle County, where Vail is located. Deed-restricted properties are exempt from real estate transfer taxes and the restriction won't change when properties change hands. The town's goal is to acquire an additional 1,000 deed-restricted units by 2027.

In 2020, the Urban Land Institute recognized the program as the Robert C. Larson Housing Policy Leadership Award winner. As of September 2020, Vail InDEED has allowed the town of Vail to purchase 153 deed restrictions for a total of $10.5 million, which allowed 340 year-round and seasonal workers to attain housing.

"This is often framed as a simple supply-and-demand problem, but it's not," Thompson said. There isn't a fixed number of people in each community who need to buy homes, but rather a network of potential buyers from across the country vying for limited real estate in beautiful places.

Thompson thinks that either the government should supply this housing by enabling local housing districts to build high-density affordable housing or by forcing developers to do it. If a developer wants to build a subdivision of 100 houses, for example, the local government could require 20 of them to be affordable units.

Schmidt agrees: "Affordable housing is going to have to be something that people pay for, just like you pay for roads and schools and water and sewer. It's a function of the town because the growing separation of income categories has gotten so large."

The best solution, according to Thompson, is a real estate transfer tax — a tax on the transfer of a property's title or deed.

Wyoming's House Revenue Committee attempted to pass a real estate transfer tax in May of this year, proposed by a Teton County Democrat. The tax would have allowed counties in the state to institute a 1% tax on real estate sales over $1 million. Teton County officials said the tax revenue could go towards assuaging Jackson's housing crisis, but the measure failed.

These are great places to live, Olson, Schmidt, and Thompson agree. There aren't many towns where one can access world-class recreational activities and views that others travel thousands of miles to see. But according to Olson, "there is a responsibility to living in a place like this, and that responsibility includes being a good steward of the surrounding environment."

Schmidt said that global warming has contributed to the increase in visitation to resort communities, particularly those located in the mountains. "When I first moved here, there were two seasons: winter and the Fourth of July," Schmidt quipped. Then, there were only about 45 frost-free days per year. Now there are up to 90 frost-free days, with May and September experiencing less snow than in previous decades.

A quarter-century ago, according to Schmidt, the town's seasonal economy was almost entirely focused on the wintertime. But the flip towards summer, which has been mirrored in other Colorado towns like Aspen and Telluride, means that summer business makes up 65% of the town's budget. The town is busier in times it hasn't traditionally been, straining businesses and infrastructure. Schmidt reported that Crested Butte's busiest months are July and August rather than December and March, which now see the same numbers as June and September.

"The big question has been, who are we saving this town for anyhow? And unfortunately, it seems like we're saving the town for people with a lot of money to come in here and buy it and get people pushed out," Schmidt said.

But local communities aren't giving up. Part of the "responsibility" Olson mentioned is buying into the characters of these places from a place of care and intention. That includes tipping service workers, caring for the land, and getting involved in the local policy-making process to make things better for everyone.

It also means that wealthier residents will likely have to pony up to keep the town running. But while taxing real estate or second-home owners may bring in revenue, the onus will be on local governments to take concrete action and put that revenue to good use.

Living in a new and beautiful area, Olson said, "can look very glamorous and shiny."

"But these are very, very special places," she continued. "And we need to work extra hard to make sure that we retain their beauty and do everything we can to balance the importance of community in them."



When The Disappeared Is Your Brother

A Conversation with Rayhan Asat, Uyghur Rights Activist

BY: **MAAYAN SCHOEN**

Rayhan Asat is a 2021-2022 Yale World Fellow whose brother is being held in solitary confinement as part of China's genocide against the Uyghur minority. A graduate of Harvard Law School, Rayhan is an international human rights lawyer and advocate fighting for the release of her brother and freedom for all Uyghur people.

Picture of Rayhan and Ekpar in Ürümqi, 2014

***THE POLITIC*: CAN YOU PLEASE TELL US ABOUT WHAT LIFE WAS LIKE LEADING UP TO THE TIME BEFORE EKPAR WAS "DISAPPEARED" AND IMPRISONED IN XINJIANG FORCED LABOR CAMPS IN 2016?**

Asat: I was a student at Harvard. Of all my family, I remember my brother was incredibly proud, because I was the first Uyghur to study law there. One of my cherished memories is from the summer I got accepted: I went back to Ürümqi, and my family came with all these bouquets. My brother arranged everything. That's how thoughtful he is.

Then, in late 2015, my brother told me that he'd been selected to one of the most prestigious programs in the United States, the State Department's International Visitor Leadership Program.

He has a social technology [business] because he studied computer science in university but also is a voracious reader. He created this platform for people to share knowledge and learn from each other, but also befriend each other. He saw an opportunity for Uyghurs to also catch up with the rest of the world. He believed that in order to really help people and also at the same time create a platform for the government to engage with citizens, it was important to follow the censorship rules. The government really liked it, so they partnered with him and collaborated with him on a project to help some of the kids that he'd been working with.

I thought that when somebody really commits themselves to a cause, one that is so noble, then I think people do recognize you for your commitment, for your kindness, and generosity. And I think those are the values of my brother.

In his program cohort were kind people who are representative of the country but also come from different provinces and cities of China. Han people within the cohort were not exposed to Uyghur culture — they didn't know Uyghur people at all. So they were planning to work on a video of their trip, and then share it with the rest of the Chinese citizens to showcase this beautiful relationship between our member of the community with the majority,

When he was in Washington, DC, I met up with him. That was supposed to be it, but I really wanted to meet him again, so I ended up going to New York for a few hours and met with him. Then I had to come back to Boston, because I had a negotiation workshop seminar course that I could not miss. It was a busy semester. A part of me said, oh, maybe I should go to San Francisco to visit him. But he's like, "no, no, no, chill, I'm coming back to your graduation with our parents." So I started to schedule a road trip for us, looking forward to spending a few months together with my family.

I never thought that would be the last time I'd see him. Within weeks, he disappeared into the shadows of the Chinese government's internment camps.

One morning I woke up and I had this gut feeling. I had butterflies all over my stomach and immediately tried to contact my brother. He was nowhere to be found.

That was our big plan.

Meanwhile, he went back to China. And I never thought that would be the last time I'd see him. Within weeks, he disappeared into the shadows of the Chinese government's internment camps.

AT THE TIME, DID YOU KNOW WHAT WAS HAPPENING?

The Uyghur media outlets in America were reporting [on] people disappearing, but they thought they were in some sort of factories or camps. But because I wasn't engaged in this kind of politics, I wasn't so sure what was happening. And suddenly, my parents, who were so eager to come to the United States, canceled their trip to the US. They couldn't tell me why.

One morning I woke up and I had this gut feeling. I had butterflies all over my stomach and immediately tried to contact my brother. He was nowhere to be found. I reached out to my parents [to ask if] something happened to my brother. There was just a lot of weeping on the other end of the phone.

The first initial months I was trying to piece things together but still had so much hope in the integrity of the Chinese system. When people go abroad, sometimes these kinds of things happen in China. Very often people would disappear and the government would investigate them but [eventually] release them. I just thought this was one of those.

WERE YOU WORRIED THAT SOMETHING WAS GOING TO HAPPEN TO YOUR PARENTS AS WELL?

I think that was the ultimate fear. And that was one thing that kept me from speaking up. It was about "whose life should I be protecting?" My parents, or his? If I speak up, what happens if they detain my parents? What if they [are held] in the same conditions? Nobody should be put in position to choose one life over the other. And that's what I had to do. I chose my parents over him by not speaking out publicly.

HOW DID YOU DECIDE TO START SPEAKING UP?

When I talked to some of the Harvard professors about the idea, they [highlighted that] the Chinese government cares a lot about their reputation. That means that you don't do public advocacy, because the minute you say the Chinese government arbitrarily detained or disappeared somebody, that would hurt their global image. They would see you as the enemy of the state.

That's why I chose to reach out to some of my friends in China, professors I know, from before, or contacts that I have within the business community or even within the government. But all of them said that they could have become involved if we were Han, but because we're Uyghurs, they cannot get involved because our identity is sensitive.

It was never my intention to become an advocate who would speak against the Chinese. I was proud of a diverse China. I was proud of being a bridge-builder between the Han people, the Uyghur people, and the government itself.

I tried to work within the system. I tried to do everything to see my brother without jeopardizing his life or mine. The final breaking point was learning about the sentencing. He was sentenced to a prison camp on trumped-up charges of inciting ethnic hatred and ethnic discrimination. He's the one who's systematically discriminated against — and yet they're blaming him. They don't have to bring any evidence or anything to justify it. No court record, no trial record, nothing.

He's been in solitary confinement since January 2019. The prison officials confirmed with my family that he looked like a shadow of his former self.

WHAT ARE SOME OF YOUR MAIN ADVOCACY AND ACTIVISM EFFORTS?

The first time I ever spoke publicly was in 2020 at Harvard. I truly centered my advocacy around speaking to college students who can understand my pain, being a student and having this bright future and suddenly, just a nightmare ensuing after your graduation.

The other dimension of my advocacy is raising awareness with members of Congress to address this crisis. I've been privileged to be given a platform. I try to use it as powerfully as I can to explain the unexplainable to American and international audiences.

I have been very selective to be a moderate voice that can invite the Chinese government to reconsider its repressive policies, but also bring the Chinese people to my cause.

DO YOU STILL HAVE HOPE THAT HE WILL BE RELEASED?

Am I hopeful? I am. As now Biden and Xi are set to meet, Biden should discuss directly with Xi to bring Ekpar to America.

It was never my intention to become an advocate who would speak against the Chinese. I was proud of a diverse China. I was proud of being a bridge-builder between the Han people, the Uyghur people, and the government itself.

This article has been edited and condensed for clarity, due to space constraints, and to reflect follow-up questions with Rayhan Asat. Katherine Chou and Cameron Freeman contributed to editing this interview.

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